

23VECV01145 23VECV01145

County: los-angeles

Division: Civil Law and Motion

Department: T

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Case Number: 23VECV01145 Hearing Date: September 4, 2026 Dept: T

23VECV01145 SONKEY V EYENGA

[TENTATIVE] ORDER: Specially Appearing Defendants Anastasie Brenda Biya Eyenga and Marie Therese Yabits' Motion to Set Aside Default is CONTINUED to October 20, 2026 at 8:30 a.m.

Specially Appearing Defendants Anastasie Brenda Biya Eyenga and Marie Therese Yabits' Request for Judicial Notice is CONTINUED.

As to the July 24, 2026, Minute Order, the Court strikes, nunc pro tunc, the reference to a "Motion to Strike" as being a proper responsive pleading.

Introduction

Defendants Anastasie Brenda Biya Eyenga and Marie Therese Yabits (collectively, Defendants) moved to set aside the entry of default status dated, March 23, 2026. Plaintiff Reprudentia Sonkey (Plaintiff) did not file an opposition as noted by Defendants in their Notice of Non-Opposition (filed on July 23, 2026.)

Procedure

This matter was originally heard and reviewed on July 24, 2026, wherein the Court continued the matter to this date to provide Defendants with an opportunity to submit a responsive pleading (i.e., a Proposed Answer or Proposed Demurrer). The July 24, 2026, Minute Order further provided that the declaration with proposed responsive pleading was due by August 12, 2026. Any Supplemental Opposition to the declaration was due by August 26, 2026. Any Supplemental Reply was due by September 2, 2026. The parties did not file the proposed responsive pleading and did not file any supplemental briefing.

Instead of any of the above proposed pleadings or supplemental briefs, Defendants filed a Motion for Reconsideration on August 3, 2026, which is scheduled for September 29, 2026. The Motion for Reconsideration places into issue the Court's Order requesting Defendants to submit a proposed responsive pleading. Because Defendants placed into issue the portion of the Court's July 24, 2026, Order that is to be reviewed today, the Court CONTINUES the instant matter to September 29, 2026.

The Court further noted that the July 24, 2026, Minute Order mistakenly included a "Motion to Strike" as a manner of acceptable response. However, a Motion to Strike is not considered a pleading and would not be a proper proposed

responsive pleading, as required by Code of Civil Procedure, section 473(b). The Court enters a nunc pro tunc order correcting the July 24, 2026, Minute Order and strikes out the reference to a Motion to Strike.

BECAUSE THE COURT IS CONTINUING THE MOTION, IT WILL HEAR NO ARGUMENTS ON THE MERITS OF THE MOTION.